

Table of Statutes referred to in this Act

Short Title	Chapter
Disorderly Houses Act 1751	25 Geo. 2. c. 36.
Theatres Act 1843	6 & 7 Vict. c. 68.
Registration of Births, Deaths and Marriages (Scotland) Act 1854	17 & 18 Vict. c. 80.
Interpretation Act 1889	52 & 53 Vict. c. 63.
Public Health (Scotland) Act 1897	60 & 61 Vict. c. 38.
Forgery Act 1913	3 & 4 Geo. 5. c. 27.
Government of Ireland Act 1920	10 & 11 Geo. 5. c. 67.
Police Pensions Act 1921	11 & 12 Geo. 5. c. 31.
Local Government Act 1933	23 & 24 Geo. 5. c. 51.
Public Health Act 1936	26 Geo. 5. & 1 Edw. 8. c. 49.
Public Health (London) Act 1936	26 Geo. 5. & 1 Edw. 8. c. 50.
Nursing Homes Registration (Scotland) 1938	ct 1 & 2 Geo. 6. c. 73.
Education Act 1944	7 & 8 Geo. 6. c. 31.
Ministry of Fuel and Power Act 1945	8 & 9 Geo. 6. c. 19.
Statutory Instruments Act 1946	9 & 10 Geo. 6. c. 36.
Fire Services Act 1947	10 & 11 Geo. 6. c. 41.
Local Government (Scotland) Act 1947	10 & 11 Geo. 6. c. 43.
Electricity Act 1947	10 & 11 Geo. 6. c. 54.
Criminal Justice Act 1948	11 & 12 Geo. 6. c. 58.
Criminal Justice (Scotland) Act 1949	12, 13 & 14 Geo. 6. c. 94.
Magistrates' Courts Act 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 55.
Visiting Forces Act 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 67.
Registration Service Act 1953	1 & 2 Eliz. 2. c. 37.
Mines and Quarries Act 1954	2 & 3 Eliz. 2. c. 70.
Building (Scotland) Act 1959	7 & 8 Eliz. 2. c. 24.
Factories Act 1961	9 & 10 Eliz. 2. c. 34.

1963 CHAPTER 42

An Act to provide for the fixing of days when betting facilities may be provided on licensed tracks being dog racecourses in place of betting days lost due to weather conditions or other circumstances.

[31st July 1963]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Replacement
of betting
days for dog
racing lost on
account of
weather
conditions,
etc.
1963. c. 2.

1.—(1) If the occupier of any licensed track, being a dog racecourse, decides that it is or will be impracticable, due to weather conditions or to any other circumstances outside his control, for dog races for which betting facilities are provided to take place at the time advertised to the public on any of the betting days fixed for that track under paragraph 14 of Schedule 3 to the Betting, Gaming and Lotteries Act 1963 (hereinafter referred to as “the principal Act”) and notifies the licensing authority of his decision and of the reasons therefor, he may make application to the licensing authority to fix such other day (not being a Good Friday, Christmas Day or Sunday) during the year then current as may be specified in his application, in place of that betting day, as a day on which, notwithstanding anything in the principal Act, betting facilities may be provided on that track.

(2) Every such application shall be made within seven days of the expiry of the betting day in relation to which the application is made, and shall be accompanied by a certificate that no dog races for which betting facilities were provided took place at the track on that day.

(3) Where an application is duly made to the licensing authority as aforesaid the licensing authority shall (unless they are satisfied that the decision made as aforesaid was not justified by the reasons notified at the time of the application) fix the day specified in the application, or such other day (not being a Good Friday, Christmas Day or Sunday) during the year then current as they may think fit, as a day on which betting facilities may be provided on the track:

Provided that if the licensing authority propose to substitute another day for the day specified in the application they shall, before doing so, notify the occupier of the track of their intention and consider any representations which may be made by him within seven days of his being so notified.

(4) Within twenty-eight days of the making of an application under this section in respect of any track, the licensing authority to whom it is made shall either fix a day for that track under subsection (3) of this section or notify the applicant that the application is refused.

(5) Notwithstanding anything in the principal Act, every day fixed for any track under subsection (3) of this section shall be deemed, for the purposes of the principal Act and of this Act, to be a betting day (and, if the day in place of which it is fixed was a special betting day, a special betting day) fixed for that track under paragraph 14 of Schedule 3 to the principal Act.

(6) Not more than four days in any one year may be fixed under subsection (3) of this section in respect of any one track

in place of betting days on which no dog races have taken place on that track:

Provided that, in reckoning such four days, no account shall be taken of any day fixed as aforesaid on which, in the event, for the like reasons as are mentioned in subsection (1) of this section, no dog races for which betting facilities are provided take place on the track in respect of which it was fixed.

(7) In this section—

- (a) the expression “year” means a period of twelve months beginning with 1st July;
- (b) expressions used both in this section and in Schedule 3 to the principal Act have the same meanings respectively in this section as in that Schedule; and
- (c) any reference to any enactment shall be construed as a reference to that enactment as amended by or under any other enactment.

2. This Act may be cited as the Dog Racing (Betting Days) Short title. Act 1963.

1963 CHAPTER 43

An Act to regulate the keeping of boarding establishments for animals; and for purposes connected therewith.

[31st July 1963]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) No person shall keep a boarding establishment for animals except under the authority of a licence granted in accordance with the provisions of this Act.

Licensing of
boarding
establishments
for animals.

(2) Every local authority may, on application being made to them for that purpose by a person who is not for the time being disqualified—

- (a) under this Act, from keeping a boarding establishment for animals; or
- (b) under the Pet Animals Act 1951, from keeping a pet shop; or
- (c) under the Protection of Animals (Cruelty to Dogs) Act 1933, from keeping a dog; or
- (d) under the Protection of Animals (Cruelty to Dogs) (Scotland) Act 1934, from keeping a dog; or